

DATA PROTECTION AGREEMENT

entered into between

Cornerstone Financial Services Group (Pty) Ltd

(Registration Number 2002/076416/23)

(Hereinafter referred to as Cornerstone Financial Services Group (Pty) Ltd
and

Sautech (Pty) Ltd

(Registration Number 2003/006814/07)

(Hereinafter referred to as “the Data Processor”)
Each a “Party” and together referred to as “the Parties”

1.Introduction

1.1WHEREAS:

1.1.1 Data Protection Legislation is and/or will be applicable to all organisations involved in the Processing of Personal Data;

1.1.2 The Parties wish to enter into this Data Protection Agreement which sets out the terms and conditions applicable to the protection of the Personal Data they process in the course and scope of their relationship as separate Responsible Parties, as set out in the terms of the applicable Agreements.

2.General obligations

2.1 The Parties warrant, on an ongoing basis that:

- a) The Parties shall comply with their obligations under the applicable Data Protection Legislation, including in respect of any required notification to, registration with, or authorisation from the relevant Regulator;
- b) Each Party shall align with local Data Protection Legislation in so far as it applies to the parties, with regard to the Processing of Personal Data and will furthermore, implement any required change/s, at no additional cost to the other party, by no later than the effective date of such Data Protection legislative change/s;
- c) The Parties have adequate and efficient processes in place to comply with its obligations under the relevant Data Protection legislation, including, but not limited to, the necessary processes to manage and timeously fulfil the rights of Data Subjects under Data Protection Legislation.

- a) that it has obtained Client consent where required to process the Client's Personal Data, and has disclosed the purpose/s for which it is being collected;
- b) it shall ensure that Clients have been duly notified of the sharing of personal data with the Data Processor and the purpose thereof; and
- c) that it shall promptly notify the Data Processor on receipt of any complaint, allegation, or request, including by any Regulator, relating to Cornerstone Financial Services Group (Pty) Ltd obligations under Data Protection Legislation.

For and on behalf of CSFG duly authorised thereto

ANNEXURE A

Definitions

1. **Data Protection Legislation** means the data protection laws and any data protection obligations contained within national legislation in South Africa, any jurisdiction in which the Services are being provided, the relevant Data Subject is located or Personal Information is being Processed, stored or used and any jurisdiction from which the financial adviser provides any of the Services, including any of the following where relevant, but not limited to, the South African Protection of Personal Information Act 4 of 2013 ("POPIA") as and when promulgated, the Consumer Protection Act No.68 of 2008, and National Credit Act No. 34 of 2005, the UK Data Protection Act 1998, the EU Data Protection Directive 95/46/EC, the EU Directive on Privacy and Electronic Communications 2002/58/EC, Commission decisions and guidance, and the European Union General Data Protection Regulation ("GDPR");
2. **Data Subject** means any living or juristic (legal entity) person that Cornerstone Financial Services group (Pty) Ltd collects, uses, and processes personal data for including, without limitation, existing and prospective customers, Cornerstone Financial Services Group (Pty) Ltd counterparties, employees, directors, contractors, business contacts, shareholders, FSP's or intermediaries;
3. **Personal Data** is any data (including special personal data) recorded electronically or in hard copy, that if viewed on its own, or collectively with other data, can be used to uniquely identify an individual or a legal entity, where applicable under local law (collectively referred to as the Data Subject);
4. **Processing** means any operation or activity or any set of operations, whether or not by automatic means, concerning Personal Information, including:
 - a) the collection, receipt, recording, organisation, collation, storage, updating or ion, modification, retrieval, alteration, consultation, or use;
 - b) disclosure or dissemination by means of transmission, distribution or making available in any other form; or
 - c) merging, linking, as well as restriction, degradation, archiving, deletion, or destruction of information; and Process shall have a corresponding meaning;
5. **Regulator** means any regulator, regulatory body, or supervisory authority with jurisdiction over Cornerstone Financial Services Group (Pty) Ltd and the financial adviser and their affiliates.
6. **Responsible Party** means a Public or Private body, or any other person which, alone or in conjunction with others, determines the process of and means for processing personal information.